

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the Interstate Transmission System	))	Docket No. RM26-4-000
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**MOTION FOR LEAVE TO SUBMIT COMMENTS OUT-OF-TIME AND
INITIAL COMMENTS OF
THE KANSAS CORPORATION COMMISSION**

Pursuant to Rule 214 of the Federal Energy Regulatory Commission’s (“FERC”) Rules of Practice and Procedure, the Kansas Corporation Commission (“KCC”) respectfully submits this Motion for Leave to Submit Comments Out-of-Time and Initial Comments in response to the October 27, 2025 Notice Inviting Comments regarding the Advanced Notice of Proposed Rulemaking (“ANOPR”) proposed by the Secretary of Energy on October 23, 2025 pursuant to Section 403 of the Department of Energy Organization Act.¹

The KCC’s interests in this proceeding stem from its obligations to ensure Kansas customers receive reliable utility service in exchange for just and reasonable rates. The KCC’s principal means of fulfilling its obligations is through direct regulation of all rates, terms and conditions of service by which public utilities that provide bundled retail electric service to end-use customers in Kansas.² Though the KCC does not regulate wholesale rates, it also fulfills its obligation to Kansas customers by participating in proceedings and

¹ 42 U.S.C. § 7173.

² In pertinent part, Kansas law defines a “public utility” any entity that is engaged in “the production, transmission, delivery or furnishing of heat, light, water or power.” K.S.A. 66-104(a). An “electric public utility” is any entity that meets the definition of public utility and also “generates or sells electricity.” K.S.A. 66-101(a).

processes wherein the justness and reasonableness of rates, terms, and conditions for wholesale transmission service are at issue. Specifically, the KCC is an active participant at the Southwest Power Pool, Inc. (“SPP”), including its Regional State Committee. The KCC also participates in FERC proceedings to help develop evidentiary records necessary to ensure the justness and reasonableness of the rates, terms, and conditions of wholesale service that ultimately impact end-user customers in Kansas. The ANOPR proposes action that has the potential to alter the KCC’s ability to fulfill its obligations to Kansas customers and protect traditional load from incremental costs imposed by new large load customers that desire to interconnect to the FERC-controlled grid. Worse yet, in addition to a major intrusion on state jurisdiction, the ANOPR proposes a process that does not address the heart of the issues. Consequently, the KCC appreciates the opportunity to submit these Initial Comments and explain its views that the ANOPR:

- does not identify or analyze the full scope of issues relevant to the question of jurisdiction;
- misses the mark by assuming that an unprecedented expansion of federal jurisdiction is an appropriate response to the projected increases in load driven by large load customers plans to interconnect to the grid when the appropriate response involves adherence to the well-established divide between state and federal jurisdiction and a commitment to cooperative federalism whereby:
 - states can take appropriate actions to protect traditional load from the potential for improper cost shifts relating to investments in generation and local distribution facilities needed to serve large load customers; and
 - regional stakeholders are permitted to work together to craft and present to FERC proposed revisions to Transmission Providers’ tariffs that will protect traditional load from bearing excessive costs related to network upgrades and other new transmission infrastructure necessary to facilitate interconnection of large loads to the FERC-regulated grid;

- requires clarifications to avoid unnecessary uncertainty, protect against unnecessary intrusion on state jurisdiction, and avoid undermining or prejudicing cooperative efforts to protect traditional load from the costs of the increased investment in generating, local distribution, and transmission infrastructure that are incurred to interconnect large load to the FERC-regulated grid; and
- proposes an unreasonable timeline for final agency action given the unprecedented nature of the proposed expansion of federal jurisdiction and the time needed to allow states and regional stakeholders to develop sensible policy solutions that advance the public interest generally.

I. MOTION FOR LEAVE TO SUBMIT COMMENTS OUT-OF-TIME

The KCC submitted a timely notice of intervention in this proceeding on November 21, 2025. However, due to the press of other business, the KCC was not able to finalize its Initial Comments by the November 21, 2025 deadline. The KCC submits that FERC should accept these Initial Comments out-of-time for good cause. Specifically, the KCC offers a unique perspective that will assist FERC as it considers what action to take, if any, in response to the ANOPR. The KCC supports development of well-supported policies that advance the interests of reliability and affordability, particularly given substantial changes to the nation's generation mix.³ It also has a strong track record of working with diverse groups of stakeholders to address issues the impacts of the changing generation fleet.⁴ In addition, the KCC is a retail regulator in a state that does not offer retail choice. Further, the KCC is submitting these Initial Comments at an early stage of the proceeding—i.e., just two business days after the deadline for timely comments. As such,

³ See generally Docket No. RM21-17-000, KCC's Initial Comments (August 17, 2021); see also Docket No. RM21-14, KCC's Notice of Intervention and Comments (July 23, 2021).

⁴ See, e.g., Docket No. ER255-2296-000, KCC Notice of Intervention and Comments in Support at 5-7 (June 12, 2025) (explaining the basis for the KCC's support for SPP's Expedited Resource Adequacy Study filing and its participation in the stakeholder process that SPP administered in developing the ERAS proposal); see also Docket No. ER24-1317-000, KCC's Motion to Intervene Out-of-Time and Comments in Support at 11-12 (explaining the basis for the KCC's support for SPP's revisions to its tariff to implement an Effective Load Carrying Capability accreditation methodology for variable resources, and a performance-based accreditation methodology) (April 9, 2024).

no party will be prejudiced by the KCC's late submission. Based on the foregoing, the KCC submits that FERC should accept these late-filed Initial Comments.

II. INITIAL COMMENTS

According to the ANOPR, the “unprecedented current and expected growth of large loads seeking to interconnect to the transmission system” has made it “necessary to standardize interconnection procedures and agreements for such loads, including those seeking to share a point of interconnection with new or existing generation facilities (hybrid facilities).”⁵ The ANOPR's principal request is that FERC take responsibility for addressing this need by concluding, as a matter of law, that interconnections of large loads to the FERC-regulated grid are subject to federal law.⁶ If FERC adopts the legal conclusion proposed by the ANOPR, the ANOPR does not identify any specific reforms that FERC should implement to administer jurisdiction over large loads. Rather, the ANOPR identifies 14 “Principles for Reform” that it contends “should inform” FERC's rulemaking procedures.⁷

The KCC agrees the ANOPR has identified an important issue that warrants attention. But the KCC takes issue with the conclusion that an unprecedented expansion of federal jurisdiction is necessary to address these important issues. In particular, the KCC submits the legal analysis presented in the ANOPR does not fully identify or address the full scope of the jurisdictional issues that should be considered, nor does it give appropriate consideration to the ability of states and FERC to work cooperatively within the confines of their respective jurisdictional spheres to develop a sensible policy solution that meets

⁵ ANOPR at ¶ 12.

⁶ *Id.* at ¶ 13.

⁷ *Id.* at ¶ 17. The 14 Principles for Reform are articulated in paragraphs 18 to 31 of the ANOPR.

the goals of (i) protecting traditional load from costs incurred to facilitate the interconnection of large load customers, and (ii) gives large load customers the certainty they need to make economic decisions and develop projects. The KCC addresses these issues in more detail in Section II.A below. In Section II.B, the KCC identifies areas of the ANOPR uncertainty that it identified in analyzing the ANOPR. If left unaddressed, these issues threaten to undermine efforts to use cooperative federalism to develop sensible policy solutions. Finally, in Section II.C below, the KCC articulates its concerns with the ANOPR's request for final agency action by April 30, 2026.⁸

A. To the Extent FERC Considers the ANOPR, It Must Fully Analyze the Jurisdictional Questions at Issue.

As this stage of the proceeding, the KCC identifies two discrete points in response to the jurisdictional issues raised by the ANOPR.

1. FERC Should Clarify that the ANOPR's Scope Does Not Propose Federal Regulation Over Retail Sales or a Right for Large Load Customers to Bypass Franchised Retail Service Providers.

To the extent FERC is inclined to consider the ANOPR, it should clarify the scope and intent to ensure all relevant issues are identified and subject to stakeholder comments. The KCC understands that the ANOPR's focus is on the terms and conditions of transmission interconnection service. In other words, the KCC understands that the ANOPR is not asking FERC to assert jurisdiction over large load interconnections for retail sales. In support of its interpretation, the KCC notes that the ANOPR's first sentence explains that the ANOPR is asking FERC to "initial rulemaking procedures and consider

⁸ Given the early stage of the proceeding, the KCC has elected to focus on these threshold issues, concerns, and requests for clarification. The KCC's silence on any particular aspect of the ANOPR should not be construed as agreement or disagreement.

this Advance Notice of Proposed Rulemaking (ANOPR) presenting potential reforms to ensure the timely and orderly interconnection of large loads to the transmission system.”⁹ And in the section of the ANOPR titled “Need for Reform,” the ANOPR states that “it has become necessary to standardize interconnection procedures and agreements for such loads, including those seeking to share a point of interconnection with new or existing facilities (hybrid facilities).”¹⁰ Further, the third legal justification offered to support FERC’s jurisdiction over large load interconnections contends that the “the proposal does not impinge on States’ authority over retail electricity sales by asserting jurisdiction over the interconnection of large loads to the transmission system.”¹¹ However, the KCC submits that clarification is warranted because aspects of the proposal suggest a broader scope that creates concerns about jurisdiction that the ANOPR does not identify or address.

The KCC’s concern is based on its view that ANOPR either focuses on states that have enacted retail choice or fails to adequately acknowledge and consider states that have not enacted retail choice. For example, the ninth principle for reform states that “to the extent the interconnection customer is not the transmission owner, the interconnection customer shall be afforded the same (or equivalent) option to build as currently provided to generator interconnection customers.”¹² This principle suggests that large load customers have a right to directly interconnect to the FERC-regulated grid that trumps state laws regarding retail choice and certificated service territories. The implication could be that the ANOPR is proposing reforms that would allow large loads to bypass retail

⁹ ANOPR at ¶ 1 (footnote omitted).

¹⁰ *Id.* at ¶ 12.

¹¹ *Id.* at ¶ 15.

¹² *Id.* at ¶ 26.

providers in states that do not have retail choice, allowing those loads to take power directly from a wholesale market or an independent generator. The ANOPR's discussion of hybrid facilities could also be read as supporting the notion that third-party generators could co-locate with large loads to serve large load customers in the certificated service territories of public utilities that have been granted exclusive franchises to serve end-use customers. Likewise, the seventh principle discusses curtailment agreements with large load customers,¹³ which could be read as suggesting that large load customers can take wholesale transmission service directly from wholesale markets, also bypassing public utilities in Kansas that have an exclusive right to serve end-use customers in their certificate service territories. Since non-restructured states regulate their vertically-integrated utilities, allowing large loads to bypass such utilities would inherently also imply large loads may completely bypass state rate regulation.

The KCC recognizes that the Federal Power Act's jurisdictional divide can be blurry at times. But FERC has made clear that the Federal Power Act does not extend federal authority to retail transmission service provided directly to an ultimate consumer.¹⁴ And the Supreme Court has recognized "that the States retain significant control over local matters,"¹⁵ which include "most power production and virtually all distribution and

¹³ *Id.* at ¶ 24.

¹⁴ See *Promoting Wholesale Competition Through Open Access Non-Discriminatory Transmission Services by Public Utilities; Recovery of Stranded Costs by Public Utilities and Transmitting Utilities*, Order No. 888, 61 Fed. Reg. 21540, 21625 (May 10, 1996) (explaining that "Section 212(h) ... clearly prohibits" FERC from extending jurisdiction over retail transmission service to end-users); FERC Stats. & Regs. ¶ 31,036 (1996), *order on reh'g*, Order No. 888-A, 62 Fed. Reg. 12274 (Mar. 14, 1997), FERC Stats. & Regs. ¶ 31,048, *order on reh'g*, Order No. 888-B, 81 FERC ¶ 61,248 (1997), *order on reh'g*, Order No. 888-C, 82 FERC ¶ 61,046 (1998), *aff'd in relevant part sub nom. Transmission Access Policy Study Group v. FERC*, 225 F.3d 667 (D.C. Cir. 2000), *aff'd sub nom. New York v. FERC*, 535 U.S. 1 (2002).

¹⁵ *New York v. FERC*, 535 U.S. 1, 24 (2002); accord 16 U.S.C. § 824. The ANOPR relies on Justice Thomas' dissenting opinion in *New York v. FERC* to support its conclusion that the FERC has jurisdiction over the retail component of bundled sales. ANOPR at ¶ 5. That dissenting opinion does not reflect the current state of the law. The Supreme Court has had multiple opportunities to consider and adopt Justice

consumption of electric energy”¹⁶ Further, the KCC understands that the ANOPR is focused only on terms and conditions of transmission interconnection and is not proposing any change that would impact the right of retail providers to provide bundled electric service to large loads in their certificated service territories. Consequently, the KCC urges FERC to expressly avoid or reject any proposals that would improperly cross the jurisdictional divide and assert federal jurisdiction over retail sales. Further, FERC should expressly reject any proposals that allow large load customers to bypass retail utilities in non-restructured states in order to purchase power directly from a wholesale market or an independent generator. Stated another way, FERC should ensure that any reforms are narrowly tailored to avoid an improper (and unnecessary) expansion of jurisdiction over load, the generation and local distribution facilities required to serve retail load, or the design of retail rates paid by load.

In addition to respecting the bounds between state and federal jurisdiction and avoiding usurping state authority, FERC should avoid reforms that would allow large loads to bypass franchised retail providers because they are unnecessary and would create, rather than fill, any regulatory gap. Specifically, any reforms that exempt only a specific subset of retail customers from retail rate regulation would leave states with no recourse to ensure all customers in the state, particularly existing customers, are not exposed to inequitable cost shifts and only pay just, reasonable, and non-discriminatory rates.

Thomas’ minority view in the two decades since he issued his dissent. Yet, it has never endorsed that minority view.

¹⁶ *New York v. FERC*, 535 U.S. at 24 *see also* 16 U.S.C. § 824(b)(1) (FERC “shall not have jurisdiction ... over facilities used for the generation of electric energy or over facilities used in local distribution”); 16 U.S.C. § 824(d) (explaining FERC’s jurisdiction over sales for resale, i.e., sales that are not made to an end-user).

2. To the Extent a Regulatory Gap Exists Concerning Regulation of Large Load, It Involves Responsibility for the Costs of Network and Regional Upgrades Rather Than Procedures that Can Be Addressed by the States.

As explained above, the ANOPR argues that “the unprecedented current and expected growth of large loads seeking to interconnect to the transmission system” has made it “necessary to standardize interconnection procedures and agreements for such loads, including those seeking to share a point of interconnection with new or existing generation facilities (hybrid facilities).”¹⁷ The ANOPR contends that FERC should take responsibility for establishing these standards. The KCC agrees that standardization could be beneficial. However, the ANOPR misses the mark in two regards, both of which center on the important interests of cooperative federalism.

First, the ANOPR does not acknowledge or analyze existing proactive actions taken by states to address developments concerning large loads to the extent states have jurisdiction to address these issues. Kansas is an example of a state taking such proactive actions. On November 6, 2025, the KCC approved a unanimous settlement agreement that will establish a new Large Load Power Service (“LLPS”) rate plan that is designed to serve electric customers that reasonably expect to need a peak load of at least 75 MW.¹⁸ To provide the type of standardization within the State that the ANOPR cites broadly as the basis for FERC action, the LLPS tariff has the following key provisions:

- To provide certainty for retail customers, public utilities providing generation and local distribution service to traditional load, and large load customers, the LLPS tariff establishes a minimum contract term of 12 years plus an optional transitional load ramp period of up to five years, for a total term of 12-17 years.

¹⁷ ANOPR at ¶ 12.

¹⁸ *See generally* KCC Docket No. 25-EKME-315-TAR.

- Flexibility provisions that allow (i) LLPS customers to reduce the amount of their contract capacity, and (ii) for early termination subject to a fee that is calculated by a formula set forth in the tariff.
- A minimum monthly bill that is based on 80% of their contract demand.
- A requirement to post a security deposit that is equal to two years of minimum monthly bills.
- The minimum bill calculation includes payment of a reasonable allocation of all transmission costs incurred by the retail utility to serve retail customers, including network upgrades constructed as a result of interconnection studies or other regional transmission expansion plans.
- A requirement to pay all costs associated with extensions of transmission or substation construction, including costs identified during FERC-jurisdictional delivery point addition (load interconnection) processes.

By presupposing a need for expanded federal jurisdiction, the ANOPR does not address state actions like Kansas' LLPS Tariff, which adopt meaningful reforms that protect retail customers from the costs incurred to expand generating, local distribution, *and* FERC-jurisdictional transmission facilities to serve large loads. As such, its analysis of the need for the reforms it proposes is incomplete or flawed.

Second, the eighth principle states that load and hybrid facilities should be responsible for 100% of the network upgrades that they are assigned through the interconnection studies.¹⁹ While the KCC appreciates the focus on insulating existing customers from transmission cost increases, the ANOPR's proposal misses the mark. As described above, states like Kansas are already approving mechanisms to fairly allocate transmission upgrades identified during FERC-jurisdictional interconnection study processes. Therefore, the focus on cost allocation within interconnection studies is

¹⁹ ANOPR at ¶ 25. As discussed in Section II.C below, the KCC understands the reference to "load" to mean the "large load customer."

misplaced. The larger issue is the cost increases and potential cost shifts associated with regional transmission expansion plans, which states do not have authority to fully address.

In regions like SPP, regional transmission expansion plans are currently being formulated to proactively construct large-scale transmission facilities to meet unprecedented future load growth that is, in large part, caused by the large loads that are the subject of the ANOPR. The KCC supports proactive, cost-effective transmission planning initiatives, especially as opposed to the inefficient and piecemeal process for constructing upgrades identified in interconnection studies. However, the cost allocation principles identified in the ANOPR do not address this aspect of the planning process or contemplate any mechanism that would allow regional stakeholders to add to the efforts states are taking at the local level.

To facilitate the proactive development of transmission infrastructure that is necessary for large loads to interconnect to the grid in a timely manner that does not undercut the economics of their projects, stakeholders should focus efforts on cost allocation and other consumer protection guardrails associated with regional planning efforts instead of a myopic focus on interconnection. Because these regional transmission expansion plans are primarily driven by – and benefit – a specific subset of new large load customers, the focus should be on how existing retail customers can be protected, or even benefit, from load-driven expansion plans. Again, the states have a role to play with respect to investments in generating and local distribution facilities that are needed to facilitate interconnection of large loads. Any federal reforms should be narrowly crafted by regional stakeholders to address the wholesale transmission investments that are the federal analog.

Specifically, unlike the Kansas LLPS discussed above, there is currently no mechanism under federal statutes or regulations that require projected loads to commit to pay for the regional projects ahead of building those projects. These circumstances are problematic for load in regions like SPP that are pursuing development of portfolios of transmission projects that are projected to cost tens of billions of dollars.²⁰ The transmission planning processes that inform these investment plans are influenced by projections of increased load. These planning processes are also distinct processes that do not take into account SPP's interconnection studies. As noted above, the KCC does not take issue with SPP's proactive transmission planning process. Rather, the KCC notes the harm that traditional loads would be subjected to if the large loads that formed the basis for the transmission plans do not materialize, leaving only existing customers to pay for generational expansions of the transmission grid. The provisions of the LLPS are intended to address this concern to the maximum extent possible at the retail level, but they cannot address costs regional transmission costs if large loads do not materialize and take service under the LLPS. Therefore, cost allocation reforms and other consumer protections at the federal level may be required to fully insulate retail customers from potential inequitable cost shifts or unjustly high rates. To be clear, the KCC is not asking FERC to address this concern by expanding its jurisdiction to broadly cover load (or even a subset of load that meets any definition of "large load" that FERC may establish). Rather, the KCC submits that, under the current jurisdictional divide between FERC and the states, stakeholders at

²⁰ The KCC's experience is limited to SPP's consideration of an investment plan that includes a 765 kV overlay. While the specific details in other regions vary, the KCC understands all regions are experiencing an increase in transmission investment and an upward trend in wholesale transmission rates.

the RTO level are best positioned to address this issue by crafting the narrow reforms referred to in Section II.A.1 and presenting those reforms to FERC.

B. In Evaluating the ANOPR, FERC Should Clarify Its Understanding of Certain Principles for Reform.

The KCC identifies three areas where the ANOPR lacks clarity or is based on unsupported assumptions. If FERC is inclined to act on the ANOPR, it should address these areas with specificity to ensure all stakeholders have meaningful notice of the proposals under consideration and an opportunity to be meaningfully heard regarding their interests on these issues.

First, the KCC discussed the eighth principle in Section II.A.2, *supra*. That principle states that “load and hybrid facilities should be responsible for 100% of the network upgrades that they are assigned through the interconnection studies.”²¹ As explained in the foregoing discussion, the KCC understands the reference to “load” to mean “large load” customer. And despite its disagreement with the ANOPR’s proposal for FERC to assert jurisdiction over the interconnection of large loads, the KCC agrees with the goal of protecting traditional load from the costs of network upgrades that are incurred to facilitate interconnection of large loads. However, clarification is warranted because the actual intent of the ANOPR is not clear.

The ANOPR specifically defines “large load”²² and references that defined term on 19 occasions throughout the body of the document. But the eighth principle refers to “load” instead of “large load.” Consequently, the rules of construction would suggest that the ANOPR knew how to refer to “large load” when it intended to distinguish large load from

²¹ ANOPR at ¶ 25.

²² *Id.* at ¶ 1 fn.1.

load generally. As such, the eighth principle could be read as suggesting that large load should not be responsible for 100% of network upgrade costs. In addressing the ANOPR, FERC should speak to this issue with specificity to ensure that the scope of the proposals being addressed is clear.

Second, the ANOPR relies on several unsupported statements or inaccurate assumptions. For example, the third principle states that “nothing in the proposed reforms governs the siting, expansion, or modification of generation facilities.”²³ The KCC agrees that states have jurisdiction over siting, expansion, or modification of generation facilities. However, the ANOPR does not actually contain any “proposed reforms.” As such, FERC could only conclude that any reforms adopted as part of this rulemaking proceeding will not improperly invade state jurisdiction after it adopts those reforms and provides analytical support for such a conclusion. In other words, the “devil is in the details,” and the ANOPR provides no details on implementation. Given the magnitude of the proposed expansion of federal jurisdiction, FERC should take care to fully identify and analyze the relevant issues and avoid relying on unsupported statements about the ANOPR’s impact on state jurisdiction (or lack thereof). Otherwise, FERC invites challenges and appeals that will frustrate all stakeholders’ efforts to achieve a sensible policy that advances the public interest generally.

The third area the KCC brings to FERC’s attention involves the eleventh and twelfth principles. The eleventh principles states that “utilities serving large loads, including those at hybrid facilities, should be responsible for transmission service based on their withdrawal rights, as that value amount reflects the quantity of capacity and energy

²³ *Id.* at ¶ 15.

that is being transmitted across the transmission system to the load.”²⁴ Likewise, the twelfth principle states that “utilities serving large loads, including those at hybrid facilities, should be responsible for ancillary services based on peak demand, without consideration of any co-located generation.”²⁵ The KCC seeks clarifications of these principles that are consistent with the statements above about the KCC’s understanding that the ANOPR: (1) is not seeking to usurp state authority over retail sales, generating facilities, or local distribution facilities, and (2) is not proposing any reforms that are so prescriptive that they would mandate shift costs *from* the large load customers that cause those costs to be incurred *to* traditional load limit flexibility to make appropriate revisions to wholesale tariffs to address any needed changes to wholesale cost allocation methodologies.

C. Given the Magnitude of the Jurisdictional Issues and the Lack of Any Proposed Reforms, the KCC Urges FERC Not to Try to Adopt Any Reforms on the Expedited Schedule Proposed by the ANOPR.

The KCC agrees with the ANOPR that the interconnection of large loads is a pressing issue that warrants considerable attention.²⁶ As explained above, the KCC has devoted substantial attention to this issue as demonstrated by its recent approval of the LLPS rate plan that is designed to serve electric customers requiring greater than 75 MW of peak power consumption. The LLPS is an important part of the solution, but it does not fully protect traditional load from costs incurred by the interconnection of large load. Rather, federal reforms may be necessary to enact reforms that protect customers from

²⁴ *Id.* at ¶ 28.

²⁵ *Id.* at ¶ 29.

²⁶ *See, e.g., id.* at ¶ 1 (“United States electricity demand is expected to grow at an extraordinary pace, due, in large part, to the rapid growth of large loads...[T]he size and speed with which data centers can be connected to the grid present unique challenges for demand forecasting and system planning.”) (citation omitted).

improper shifting of wholesale costs. The KCC submits that an unprecedented expansion of federal jurisdiction is not the missing link, and the KCC is concerned that any effort by FERC expand its jurisdiction by April 30, 2026 as the ANOPR proposes does not allow for the full scope of issues to be identified and addressed. If FERC is inclined to take action on the ANOPR at some point, it should only do so after fully analyzing all jurisdictional issues, which entails: (1) ensuring that all relevant issues have been identified; (2) providing stakeholders a meaningful opportunity to address all relevant issues; and (3) meaningfully considering all arguments raised by stakeholders. If FERC ultimately decides it has jurisdiction over the interconnection of large loads to the FERC-regulated grid, it will be taking an unprecedented step and regulating an area it has never regulated before. Such an important issue should not be taken lightly.

In addition to the concern that enacting major reforms under an expedited process will unnecessarily intrude on state jurisdiction, the KCC is concerned that an expedited process will result in reforms that have not fully been vetted or scrutinized. As explained above, the “devil is in the details.” Advancing toward an action date of April 30, 2026 does not allow sufficient time to develop those details. It would also be inconsistent with past practice wherein FERC adopts reforms as part of a multi-step process whereby it: (1) crafts the details and contents of specific reforms that are presented to stakeholders for comment and scrutiny; (2) considers stakeholder comments, feedback, and proposals on the specific reforms; and either (3) refines the proposals as necessary to incorporate stakeholder comments, or provides a rational basis for its disagreement with any stakeholder proposals.

Further, it is likely that any reforms that could be enacted through a rushed process to implement an unprecedented expansion of jurisdiction would be inferior to reforms that regional stakeholders could develop when given appropriate time. As explained above, regional stakeholders are best positioned to develop reforms that meet the dual objectives of respecting jurisdictional boundaries and effectively addressing the underlying issues that are at the heart of this inquiry.

III. RESERVATION OF RIGHTS

The KCC appreciates the opportunity to provide these Initial Comments. Given the ANOPR's industry-wide implications, the questions identified above about the ANOPR's scope and intent, and the early stage of this proceeding, the KCC reserves the right to posit and address any additional issues that it or other stakeholders may identify or raise over the course of this proceeding.

IV. CONCLUSION

WHEREFORE, the Kansas Corporation Commission respectfully asks the Federal Energy Regulatory Commission to:

- (1) grant the Motion to Submit Comments Out-of-Time;
- (2) consider the foregoing Initial Comments when considering what action, if any, is necessary in response to the Secretary of the Department of Energy's proposed Advanced Notice of Proposed Rulemaking; and
- (3) grant such other relief as may be necessary and appropriate.

Respectfully submitted,

/s/ Jason T. Gray

Jason T. Gray

Duncan & Allen LLP

1730 Rhode Island Avenue, NW, Suite 700

Washington, DC 20036

(202) 842-8197

jtg@duncanallen.com

Counsel to the Kansas Corporation
Commission

Dated: November 25, 2025

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon each person designated on the official service list compiled by the Secretary in this proceeding.

Dated at this 25th day of November, 2025

/s/ Jason T. Gray

Jason T. Gray

Duncan & Allen LLP

1730 Rhode Island Avenue, NW, Suite 700

Washington, DC 20036

(202) 842-8197

jtg@duncanallen.com